



CHAPTER 17

An Act to reduce, during the currency of existing valuation lists, the rateable value of certain hereditaments; to make further provision as to the amounts payable by way of rates or in lieu of rates by the British Transport Commission, the Central Electricity Authority and Area Gas Boards; to amend the provisions of the Local Government Act, 1948, as to the ascertainment of the rateable value for an area; and for purposes connected with the matters aforesaid.

[21st March, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where the net annual value of a hereditament which is neither a dwelling-house nor a private garage or private storage premises is an amount ascertained by reference to its gross value as defined in section sixty-eight of the Rating and Valuation Act, 1925, and the rateable value of the hereditament would but for this section be equal to its net annual value, the rateable value of the hereditament shall be ascertained, for any rate period beginning after the thirty-first day of March, nineteen hundred and fifty-seven for which the valuation lists in force at the commencement of this Act remain in force, by making from its net annual value the deduction mentioned in the next following subsection.

Rateable value of shops, offices, etc. for purposes of existing valuation lists.

(2) The deduction shall be equal to one-fifth of the net annual value, except that where the gross value of the hereditament has been reduced by virtue of section four of the Valuation for Rating Act, 1953 (which relates to hereditaments used partly for the purposes of private dwellings) the deduction shall be equal to one-seventh of the net annual value.

(3) Where the net annual value of the hereditament includes a fraction of a pound it shall be adjusted in the manner provided by paragraph (d) of subsection (1) of section twenty-two of the Rating and Valuation Act, 1925, and the rateable value shall be ascertained by reference to the net annual value as so adjusted.

(4) Valuation officers shall give to rating authorities directions for such alterations to be made in valuation lists as are necessary in consequence of the foregoing provisions of this section, and the authorities shall give effect to the directions; and any such alteration shall be treated as having been made on the first day of April, nineteen hundred and fifty-seven but, if the alteration is made after the thirty-first day of March, nineteen hundred and fifty-eight, it shall be so treated only for the purpose of ascertaining the amount of rates chargeable.

(5) Where, on or after the first day of April, nineteen hundred and fifty-seven, an alteration having effect for a period preceding that date falls to be made in a valuation list with respect to a hereditament the rateable value of which falls to be ascertained under this section, the alteration shall be made so as to indicate the net annual value and rateable value as ascertained under this section; but the rateable value of the hereditament shall for any period preceding the said first day of April for which the alteration has effect be taken to have been the amount which after the alteration is shown in the list as its net annual value.

(6) Where the rateable value of a hereditament falls to be ascertained under this section and the hereditament is one to which section eight of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, applies (which provides for a reduction, in certain cases, in the rates payable by charitable and certain other organisations), the question whether any and if so what reduction shall be made under paragraph (b) of subsection (2) of that section or the Fifth Schedule to that Act in respect of the hereditament shall be determined as if the amount of the rates which, but for that section, would have been chargeable in respect of the hereditament for the year beginning with the first day of April, nineteen hundred and fifty-six or any portion of that year had been less by one-fifth or one-seventh, according as the deduction mentioned in subsection (2) of this section is one-fifth or one-seventh of the net annual value of the hereditament.

Payments in lieu of rates by British Transport Commission and Central Electricity Authority.

2. The payments which are, under the provisions of Part V of the Local Government Act, 1948, to be made year by year by the British Transport Commission and the Central Electricity Authority respectively for the benefit of local authorities in England and Wales shall for the year 1957-58 and subsequent years be calculated as if the standard amount referred to in sections ninety-three to ninety-five of that Act (which relate to

payments by the British Transport Commission) were the sum of two million six hundred thousand pounds and the standard amount referred to in sections ninety-six to ninety-eight of that Act (which relate to payments by the Central Electricity Authority) were the sum of eighteen million two hundred and eighty thousand pounds.

3. The rateable value of the hereditament which under section six of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, and the Third Schedule to that Act, a Gas Board is to be treated as occupying in any rating area shall for any rate period beginning after the thirty-first day of March, nineteen hundred and fifty-seven be calculated as if the amount certified under that Schedule as the Board's basic total of rateable values had been an amount greater by seventy per cent. than the amount actually certified thereunder; and accordingly an amount greater by seventy per cent. than that actually notified before the commencement of this Act in respect of any such rate period shall be deemed to have been so notified under paragraph 7 of that Schedule.

Rating
liability of
area gas
boards.

4.—(1) References in Part I of the Local Government Act, 1948, to the rateable value for an area for a year shall be construed as if in subsection (2) of section one hundred and forty-four (which relates to the construction of such references) there were inserted, at the end of the words preceding the proviso, the words "reduced, in either case, as mentioned in subsection (2A) of this section", and after the said subsection (2) there were inserted the following subsection:—

Effect of
relief of
charities, etc.
on rateable
value for
purposes of
Exchequer
Equalisation
Grants, etc.

"(2A) For the purposes of subsection (2) of this section, the total or aggregate referred to therein shall be reduced to what it would have been if the rateable value of any hereditament to which section eight of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, applies for the whole or any part of the year had been an amount bearing to that rateable value the same proportion as the amount of rates chargeable for the year in respect of that hereditament bears to the amount of rates which would have been so chargeable if the said section eight had not applied to it; and the two last-mentioned amounts shall be ascertained by reference to the rating authority's audited accounts for the year."

(2) This section shall have effect as respects the year 1957–58 and subsequent years.

(3) This section shall not affect the operation of subsection (2) of section twenty-six of the Valuation and Rating (Scotland) Act, 1956.

Repeal of
inoperative
enactments.

5. Whereas in consequence of the passing of subsection (6) of section five of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, the enactments mentioned in the Schedule to this Act have ceased to have effect to the extent specified in the third column of that Schedule; the said enactments are hereby repealed to the extent so specified.

Financial
provisions.

6. There shall be paid out of moneys provided by Parliament any increase attributable to the passing of this Act in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954, as amended by the Valuation and Rating (Scotland) Act, 1956.

Short title,
interpretation
and extent.

7.—(1) This Act may be cited as the Rating and Valuation Act, 1957.

(2) In this Act—

“dwelling-house”, “private garage” and “private storage premises” have the same meanings as in the Valuation for Rating Act, 1953;

“Gas Board” means an Area Board within the meaning of the Gas Act, 1948;

“rate period” means a period for which a rate is made;

“the valuation officer” has the same meaning as in Part III of the Local Government Act, 1948;

and the reference in subsection (5) of section one to the alteration of a valuation list with respect to a hereditament shall be construed in accordance with subsection (9) of section one hundred and forty-four of the Local Government Act, 1948.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment.

(4) This Act, except subsection (3) of section four, shall not extend to Scotland.

(5) This Act shall not extend to Northern Ireland.

SCHEDULE

Section 5.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
32 & 33 Vict. c. 67. 1 & 2 Eliz. 2. c. 42.	The Valuation (Metropolis) Act, 1869. The Valuation for Rating Act, 1953.	In section four the definition of "gross value". In section two, in subsection (1) the words from "or in section four" to "'the Act of 1869)". In section four, in subsection (2) the words "or the Act of 1869, as the case may be". In section five, in subsection (2) the words "or the Act of 1869, as the case may be". In section six, in subsection (3) the words "or in section four of the Act of 1869".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Rating and Valuation Act, 1925 	15 & 16 Geo. 5. c. 90.
Local Government Act, 1948 	11 & 12 Geo. 6. c. 26.
Gas Act, 1948 	11 & 12 Geo. 6. c. 67.
Valuation for Rating Act, 1953 	1 & 2 Eliz. 2. c. 42.
Local Government (Financial Provisions) (Scotland) Act, 1954 	2 & 3 Eliz. 2. c. 13.
Rating and Valuation (Miscellaneous Provisions) Act, 1955 	4 & 5 Eliz. 2. c. 9.
Valuation and Rating (Scotland) Act, 1956 	4 & 5 Eliz. 2. c. 60.

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Customs Duties (Dumping and Subsidies) Act, 1957

5 & 6 ELIZ. 2 CH. 18

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